

Plaintiff Joan Donaldson's motion to compel Defendant Safeway Inc.'s ("Defendant" or "Safeway") initial responses to her Special Interrogatories, Set One ("SIs") is granted in part and denied as moot in part. Plaintiff's motion to compel initial responses to her Requests for Production of Documents, Set One ("RFPs") from Safeway is granted in part and denied as moot in part. Defendant is ordered to provide verifications to the Special Interrogatories, Set One, within ten (10) days of service of the Notice of Entry of Order stemming from this hearing. Defendant shall pay \$1,935.00 in court-ordered sanctions within ten (10) calendar days of service of the Notice of Entry of this Order.

Special Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling response and for a monetary sanction. Code Civ. Proc. § 2030.290(b). The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. See *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906. Moreover, "[w]here no objections have been made within the statutorily permitted time, they are deemed waived." *Id.* Unverified responses are "tantamount to no response at all". *Appleton v. Superior Court* (1998) 206 Cal.App.3d 632, 636.

Here, Plaintiff propounded her SIs, Set One on Defendant via email to Safeway's counsel on September 12, 2025. Porat Decl., ¶ 3; Exh. A. Defendant's responses to these discovery demands were originally due by October 14, 2025. *Id.* Defendant requested, and Plaintiff granted, two extensions, making the SIs due on November 7, 2025, but Safeway failed to serve any responses by that date. Porat Decl., ¶¶ 4-5. After meeting and conferring with Defendant's counsel, Plaintiff extended the deadline for responses to Plaintiff's SIs to December 1, 2025. Porat Decl., ¶ 14. Defendant's counsel declares it served responses and verifications on November 17, 2025, but subsequently discovered the responses were to a withdrawn set of Special Interrogatories. Norris Decl., ¶ 13. Defendant's counsel states she subsequently attempted to meet and confer with Plaintiff's counsel to clear up any misunderstanding and served amended responses to the revised Special Interrogatories, Set One on January 8, 2026. Norris Decl., ¶¶ 14-15. Plaintiff's counsel acknowledges receiving responses to Special Interrogatories, Set One, but declares no verifications have been served. Reply Br., 2:27-3:1. Therefore, an order compelling verifications is warranted.

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel motions for interrogatories or requests for production, unless the Court finds the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Code Civ. Proc. § 2030.290(c). The amount of sanctions awarded centers on two main principles: causation, and reasonableness. See *Cornerstone Realty Advisors, LLC. V. Summit Healthcare Reit, Inc.* (2020) 56 Cal. App. 5th 771. First, monetary sanctions may only be imposed based on attorney's fees and costs incurred "as a result" of the

misuse of the discovery process. Cal. Civ. Pro. § 2023.030(a). Second, “[t]he amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” *Cornerstone Realty Advisors, LLC*, *supra*, at 791, citing Cal. Civ. Pro. § 2023.030(a).

Plaintiff’s request for sanctions is granted, in part. Counsel’s assertions indicate she spent six (6) hours drafting the motions, a reply and anticipated time appearing at the hearing of the motions, as well as \$60.00 in costs forming the basis for a request for sanctions in the amount of \$2,310.00. Porat Decl., ¶ 16 and Reply, Pg. 4, ll. 1-10. A party requesting sanctions for reasonable expenses that were incurred as a result of discovery abuse must already be liable for those expenses before the court can award the costs as sanctions. See *Tucker v. Pacific Bell Mobile Servs.*, 186 Cal. App. 4th 1548 (2010) (anticipated costs for future deposition could not be included in award of sanctions). While Defendant’s counsel has set forth various circumstances regarding meet and confer attempts and confusion justifying the delay in serving responses, it appears the filing of the instant motion prompted Defendant to serve responses prior to the motion hearing. Plaintiff also notes verifications have not yet been received which is “tantamount to no response at all” (See, *Appleton*, *supra* 206 Cal.App.3d at 636), indicating a court order is appropriate to ensure compliance. However, appearance at hearing has not yet occurred and may not be necessary. Therefore, the Court grants sanctions for the amount of time and costs actually incurred. At the indicated billing rate of \$375.00 per hour which the Court finds reasonable and justified and a \$60.00 filing fee, as well as considering the requests were filed separate as opposed to as one motion and there is some overlap in the pleadings, Defendant is sanctioned the total sum of \$1,935.00.

Request for Production of Documents

Plaintiff did not serve a reply to Defendant’s opposition, and the Reply on file states, “[t]o date, no written verified responses have been received to Plaintiff’s *Special Interrogatories, Set One* served September 12, 2025”. Based on the information at hand, it appears Defendant has served verified responses on Plaintiff as of January 8, 2026. Therefore, Plaintiff’s motion to compel Defendant’s responses to requests for production of documents, set one, is denied as moot.

9. CU0002314 Craig Dealon Dowell vs. Jose Valentin Galaz Romero et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference set for March 20, 2026 at 9:00 a.m.

10. CU0002345 Jeffrey T. Menasco et al vs. 15794 Alder Creek, LLC et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. Absent good cause being shown,